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**CERTIFICATE OF INCORPORATION
OF A
PRIVATE LIMITED COMPANY**

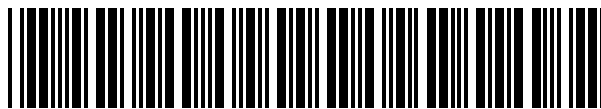
Company Number **16240204**

The Registrar of Companies for England and Wales, hereby certifies that

SIHL LIMITED

is this day incorporated under the Companies Act 2006 as a private company, that the company is limited by shares, and the situation of its registered office is in England and Wales

Given at Companies House, Cardiff, on **10th February 2025**



N162402046



Companies House



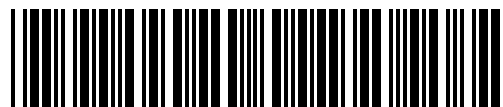
**THE OFFICIAL SEAL OF THE
REGISTRAR OF COMPANIES**



Companies House

IN01_(ef)

Application to register a company



Received for filing in Electronic Format on the: **07/02/2025**

XDVWVP3E

Company Name in full:

SIHL LIMITED

Company Type:

Private company limited by shares

Situation of Registered Office:

England and Wales

Proposed Registered Office Address:

**5TH FLOOR LONDON FRUIT AND WOOL EXCHANGE
1 DUVAL SQUARE
LONDON
UNITED KINGDOM E1 6PW**

Sic Codes:

64205

Company Secretary 1

Service Address: **recorded as Company's registered office**

The subscribers confirm that the person named has consented to act as a secretary.

Company Director *1*

Type: **Person**

Full Forename(s): **MR RAMAN**

Surname: **BHATIA**

Former Names:

Service Address: **recorded as Company's registered office**

Country/State Usually Resident: UNITED KINGDOM

Date of Birth: **/11/1978

Nationality: **BRITISH**

Occupation: **DIRECTOR**

The subscribers confirm that the person named has consented to act as a director.

Company Director 2

Type: **Person**

Full Forename(s): **DECLAN**

Surname: **FERGUSON**

Former Names:

Service Address: **recorded as Company's registered office**

Country/State Usually **ENGLAND**

Resident:

Date of Birth: ****/01/1989**

Nationality: **BRITISH**

Occupation: **DIRECTOR**

The subscribers confirm that the person named has consented to act as a director.

Company Director 3

Type: **Person**

Full Forename(s): **MR DARREN SCOTT**

Surname: **POPE**

Former Names:

Service Address: **recorded as Company's registered office**

*Country/State Usually
Resident:* **UNITED KINGDOM**

Date of Birth: ****/08/1965** *Nationality:* **BRITISH**

Occupation: **DIRECTOR**

The subscribers confirm that the person named has consented to act as a director.

Statement of Capital (Share Capital)

<i>Class of Shares:</i>	ORDINARY	<i>Number allotted</i>	1
<i>Currency:</i>	GBP	<i>Aggregate nominal value:</i>	1
<i>Prescribed particulars</i>			

FULL RIGHTS REGARDING VOTING, PAYMENT OF DIVIDENDS AND DISTRIBUTIONS

Statement of Capital (Totals)

<i>Currency:</i>	GBP	<i>Total number of shares:</i>	1
		<i>Total aggregate nominal value:</i>	1
		<i>Total aggregate unpaid:</i>	0

Initial Shareholdings

<i>Name:</i>	STARLING GROUP HOLDINGS LIMITED	<i>Class of Shares:</i>	ORDINARY
<i>Address</i>	5TH FLOOR LONDON FRUIT AND WOOL EXCHANGE 1 DUVAL SQUARE LONDON UNITED KINGDOM E1 6PW	<i>Number of shares:</i>	1
		<i>Currency:</i>	GBP
		<i>Nominal value of each share:</i>	1
		<i>Amount unpaid:</i>	0
		<i>Amount paid:</i>	1

Persons with Significant Control (PSC)

Statement of initial significant control

On incorporation, there will be someone who will count as a Person with Significant Control (either a registerable person or relevant legal entity (RLE)) in relation to the company

Relevant Legal Entity (RLE) details

Company Name: **STARLING GROUP HOLDINGS LIMITED**

Service Address: **5TH FLOOR LONDON FRUIT AND WOOL EXCHANGE
1 DUVAL SQUARE
LONDON
UNITED KINGDOM
E1 6PW**

Legal Form: **PRIVATE COMPANY LIMITED BY SHARES**

Governing Law: **COMPANIES ACT 2006**

Register Location: **UK REGISTER OF COMPANIES**

Country/State: **UNITED KINGDOM**

Registration Number: **13871603**

<i>Nature of control</i>	The relevant legal entity holds, directly or indirectly, 75% or more of the voting rights in the company.
<i>Nature of control</i>	The relevant legal entity holds, directly or indirectly, 75% or more of the shares in the company.
<i>Nature of control</i>	The relevant legal entity has the right, directly or indirectly, to appoint or remove a majority of the board of directors of the company.

Lawful Purpose Statement

The subscribers confirm that the company has been formed for lawful purposes.

Statement of Compliance

I confirm the requirements of the Companies Act 2006 as to registration have been complied with.

Name: **STARLING GROUP HOLDINGS LIMITED**
Authenticated **YES**

Authorisation

Authoriser Designation: **subscriber** *Authenticated* **YES**

COMPANY HAVING A SHARE CAPITAL

Memorandum of Association of SIHL LIMITED

Each subscriber to this memorandum of association wishes to form a company under the Companies Act 2006 and agrees to become a member of the company and to take at least one share.

Name of each subscriber	Authentication
STARLING GROUP HOLDINGS LIMITED	Authenticated Electronically

Dated: 07/02/2025

ARTICLES OF ASSOCIATION

of

SIHL Limited

The Companies Act 2006

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Private Company Limited by Shares

ARTICLES OF ASSOCIATION

of

SIHL Limited

PART 1

INTERPRETATION AND LIMITATION OF LIABILITY

1. Defined terms

1.1. In these Articles, unless the context requires otherwise:

appointor has the meaning given to that term in Article 24.1;

Articles means the Company's articles of association;

bankruptcy includes individual insolvency proceedings in a jurisdiction other than England and Wales or Northern Ireland which have an effect similar to that of bankruptcy;

CA 2006 means the Companies Act 2006;

capitalised sum has the meaning given to that term in Article 51.1.2;

chairman of the meeting has the meaning given to that term in Article 57.3;

clear days means (in relation to the period of a notice) that period excluding the day when the notice is given or deemed to be given and the day for which it is given or on which it is to take effect;

Company's lien has the meaning given to that term in Article 32.1;

Conflict has the meaning given to that term in Article 16.2;

director means a director of the Company, and includes any person occupying the position of director, by whatever name called;

distribution recipient has the meaning given to that term in Article 45.2;

electronic form has the meaning given to that term in section 1168 of the CA 2006;

Eligible Directors are to directors who would have been entitled to vote on the matter had it been proposed as a resolution at a directors' meeting (but excluding any director whose vote is not to be counted in respect of the particular matter);

Excess Securities has the meaning given to that term in Article 29.3.2;

fully paid, in relation to a share, means that the nominal value and any premium to be paid to the Company in respect of that share have been paid to the Company;

Group means the Company, any of the Company's subsidiaries and subsidiary undertakings, any of the Company's holding companies, and any subsidiary and subsidiary undertakings of the Company's holding companies from time to time, and **member of the Group** shall be construed accordingly;

hard copy form has the meaning given to that term in section 1168 of the CA 2006;

holder, in relation to shares, means the person whose name is entered in the register of members as the holder of the shares or, in the case of a share in respect of which a share warrant has been issued (and not cancelled), the person in possession of that warrant;

interested director has the meaning given to that term in Article 16.2;

lien enforcement notice has the meaning given to that term in Article 33.2;

member has the meaning given to that term in section 112 of the CA 2006;

Model Articles means the model articles for private companies limited by shares contained in Schedule 1 of the Companies (Model Articles) Regulations 2008 (SI 2008/3229) as amended from time to time;

non-interested director means any director who is not an interested director;

ordinary resolution has the meaning given to that term in section 282 of the CA 2006;

paid means paid or credited as paid;

participate, in relation to a directors' meeting, has the meaning given to that term in Article 12.1;

partly-paid, in relation to a share, means that part of that share's nominal value or any premium at which it was issued has not been paid to the Company;

persons entitled has the meaning given to that term in Article 51.1.2;

proxy notice has the meaning given to that term in Article 63.2;

proxy notification address has the meaning given to that term in Article 64.1;

relevant officer means any director, secretary, auditor or other officer of the Company or an associated company (including any company which is a trustee of an occupational pension scheme (as defined in section 235(6) of the CA 2006);

shares means shares in the Company;

special resolution has the meaning given to that term in section 283 of the CA 2006;

subsidiary has the meaning given to that term in section 1159 of the CA 2006;

transmittee means a person entitled to a share by reason of the death or bankruptcy of a holder or otherwise by operation of law;

United Kingdom means Great Britain and Northern Ireland;

writing means the representation or reproduction of words, symbols, or other information in a visible form by any methods or combination of methods whether sent or supplied in electronic form or otherwise; and

working days means a day other than a Saturday, Sunday or public holiday in England on which banks in London are open for business.

- 1.2. Save as otherwise specifically provided in these Articles, words and expressions which have particular meanings in the CA 2006 shall have the same meanings in these Articles.
- 1.3. Headings in these Articles are used for convenience only and shall not affect the construction or interpretation of these Articles.
- 1.4. A reference in these Articles to a numbered Article is a reference to the relevant article of these Articles unless expressly provided otherwise.
- 1.5. Unless expressly provided otherwise, a reference to a statute, statutory provision or subordinate legislation is a reference to it as it is in force from time to time and shall include any orders, regulations, or subordinate legislation from time to time made under it and any amendment or re-enactment of it or any such orders, regulations or subordinate legislation.
- 1.6. Any phrase introduced by the terms "including", "include", "in particular" or any similar expression shall be construed as illustrative and shall not limit the sense of the words preceding those terms.
- 1.7. The Model Articles shall not apply to the Company. These Articles shall constitute and represent the full articles of association of the Company, to the exclusion of any other articles or regulations set out in any statute or in any statutory instrument or other subordinate legislation.

2. Liability of members

The liability of the members is limited to the amount, if any, unpaid on the shares held by them.

PART 2

DIRECTORS

DIRECTORS' POWERS AND RESPONSIBILITIES

3. Directors' general authority

Subject to the Articles and to the CA 2006, the directors are responsible for the management of the Company's business, for which purpose they may exercise all the powers of the Company.

4. Change of Company name

Without prejudice to the generality of Article 3, the directors may resolve in accordance with Article 8 (Directors' decision-making: general) to change the Company's name.

5. Members' reserve power

- 5.1. The members may, by special resolution, direct the directors to take, or refrain from taking, specified action.
- 5.2. No such special resolution invalidates anything which the directors have done before the passing of the resolution.

6. Directors may delegate

- 6.1. Subject to the Articles, the directors may delegate any of the powers which are conferred on them under the Articles:
 - 6.1.1. to such person or committee;
 - 6.1.2. by such means (including by a power of attorney);
 - 6.1.3. to such an extent;
 - 6.1.4. in relation to such matters or territories; and
 - 6.1.5. on such terms and conditions; as they think fit.
- 6.2. If the directors so specify, any such delegation may authorise further delegation of the directors' powers by any person to whom they are delegated.

7. Committees

- 7.1. Committees to which the directors delegate any of their powers must follow procedures which are based as far as they are applicable on those provisions of the Articles which govern the taking of decisions by directors.
- 7.2. The directors may make rules of procedure for all or any committees, which prevail over rules derived from the Articles if they are not consistent with them.
- 7.3. Where a provision of the Articles refers to the exercise of a power, authority or discretion by the directors and that power, authority or discretion has been delegated by the directors to a committee, the provision shall be construed as permitting the exercise of the power, authority, or discretion by the committee.

DECISION-MAKING BY DIRECTORS

8. Directors' decision-making: general

- 8.1. The general rule about decision-making by directors is that any decision of the directors must be taken as a majority decision at a directors' meeting, as a directors' written resolution in accordance with Article 9 (Directors' written resolutions), or otherwise as a unanimous decision taken in accordance with Article 10 (Unanimous decisions).
- 8.2. If the Company only has one director for the time being, the general rule does not apply, and the director may (for so long as he or she remains the sole director) take decisions without regard to any of the provisions of the Articles relating to directors' decision-making. A sole director shall be entitled to exercise all powers and discretions conferred on the directors by the CA 2006 or the Articles and nothing in these Articles is to be construed as requiring the Company to have more than one director.
- 8.3. Subject to the Articles, each director participating in a directors' meeting has one vote.

9. Directors' written resolutions

- 9.1. Any director may propose a directors' written resolution by giving notice in writing of the proposed resolution to each of the other directors (including alternate directors).
- 9.2. If the Company has appointed a company secretary, the company secretary must propose a directors' written resolution if a director so requests by giving notice in writing to each of the other directors (including alternate directors).
- 9.3. Notice of a proposed directors' written resolution must indicate:
 - 9.3.1. the proposed resolution; and
 - 9.3.2. the time by which it is proposed that the directors should adopt it.
- 9.4. A proposed directors' written resolution is adopted when a majority of the Eligible Directors (or their alternates) have signed one or more copies of it, provided that those directors (or their alternates) would have formed a quorum at a directors' meeting were the resolution to have been proposed at such meeting.
- 9.5. Once a directors' written resolution has been adopted, it must be treated as if it had been a decision taken at a directors' meeting in accordance with the Articles.

10. Unanimous decisions

- 10.1. A decision of the directors is taken in accordance with this Article 10 when all Eligible Directors indicate to each other by any means that they share a common view on a matter.
- 10.2. A decision may not be taken in accordance with this Article 10 if all the Eligible Directors would not have formed a quorum at a directors' meeting had the matter been proposed as a resolution at such a meeting.
- 10.3. Once a directors' unanimous decision is taken in accordance with this Article it must be treated as if it had been a decision taken at a directors' meeting in accordance with the Articles.

11. Calling a directors' meeting

- 11.1. Any director may call a directors' meeting by giving notice of the meeting to each of the directors (including alternate directors), whether or not he or she is absent from the United Kingdom, or by authorising the company secretary (if any) to give such notice.
- 11.2. Notice of any directors' meeting must indicate:
 - 11.2.1. its proposed date and time;
 - 11.2.2. where it is to take place; and
 - 11.2.3. if it is anticipated that directors participating in the meeting will not be in the same place, how it is proposed that they should communicate with each other during the meeting.
- 11.3. Subject to Article 11.4, notice of a directors' meeting must be given to each director but need not be in writing.
- 11.4. Notice of a directors' meeting need not be given to directors who waive their entitlement to notice of that meeting by giving notice to that effect to the Company prior to or up to and including not more than seven days after the meeting has been held. Where such notice is given after the meeting has been held, that does not affect the validity of the meeting, or of any business conducted at it.

12. Participation in directors' meetings

- 12.1. Subject to the Articles, directors "**participate**" in a directors' meeting, or part of a directors' meeting, when:
 - 12.1.1. the meeting has been called and takes place in accordance with the Articles, and
 - 12.1.2. they can each communicate to the others any information or opinions they have on any particular item of the business of the meeting.
- 12.2. In determining whether directors are participating in a directors' meeting, it is irrelevant where any director is or how they communicate with each other.
- 12.3. If all the directors participating in a meeting are not in the same place, they may decide that the meeting is to be treated as taking place wherever any of them is.

13. Chairing of directors' meetings

- 13.1. The directors may appoint any director to chair their meetings.
- 13.2. The person so appointed for the time being is known as the chairman.
- 13.3. The directors may terminate the chairman's appointment at any time.
- 13.4. If the chairman is not participating in a directors' meeting within ten minutes of the time at which it was to start, the participating directors must appoint another director to chair it.

14. Chairman's casting vote at directors' meetings

- 14.1. If the numbers of votes for and against a proposal at a meeting of directors are equal the chairman or other director chairing the meeting has a casting vote.

- 14.2. Article 14.1 does not apply in respect of a particular meeting (or part of a meeting) if, in accordance with the Articles, the chairman or other director chairing the meeting is not an Eligible Director for the purposes of that meeting (or that part of that meeting at which the proposal is voted upon).

15. Quorum for directors' meetings

- 15.1. At a directors' meeting, unless a quorum is participating, no proposal is to be voted on, except a proposal to call another meeting.
- 15.2. Subject to Article 15.3, the quorum for the transaction of business at a meeting of directors may be fixed from time to time by a decision of the directors but it must never be less than two directors, and unless otherwise fixed it is two. A person who holds office only as an alternate director shall, if his or her appointor is not present, be counted in the quorum. If and so long as there is a sole director, he or she may exercise all the powers and authorities vested in the directors by these Articles and accordingly the quorum for the transaction of business in these circumstances shall be one.
- 15.3. For the purposes of any meeting (or part of a meeting) held pursuant to Article 16 (Directors' conflicts of interest) to authorise a director's Conflict, if there is only one non-interested director in office in addition to the interested director(s), the quorum for such meeting (or part of a meeting) shall be one non-interested director.

16. Directors' conflicts of interest

- 16.1. For the purposes of this Article 16, a conflict of interest includes a conflict of interest and duty and a conflict of duties, and interest includes both direct and indirect interests.
- 16.2. The directors may, in accordance with the requirements set out in this Article 16, authorise any matter proposed to them by any director which would, if not authorised, involve a director (an "**interested director**") breaching his or her duty under section 175 of the CA 2006 to avoid conflicts of interest (such matter being hereinafter referred to as a "**Conflict**").
- 16.3. An interested director seeking authorisation in respect of a Conflict shall declare to the other directors the nature and extent of his or her interest in a Conflict as soon as is reasonably practicable. The interested director shall provide the other directors with such details of the relevant matter as are necessary for the other directors to decide how to address the Conflict together with such other information as may be requested by the other directors.
- 16.4. Any authorisation under this Article 16 will be effective only if:
- 16.4.1. to the extent permitted by the CA 2006, the matter in question is proposed by any director for consideration in the same way that any other matter may be proposed to the directors under the provisions of these Articles or in such other manner as the directors may determine;
 - 16.4.2. any requirement as to the quorum at any meeting of the directors at which the matter is considered is met without counting the interested director in question and any other interested director(s); and
 - 16.4.3. the matter was agreed to without the vote of the interested director in question and any other interested director(s), or would have been agreed to if their votes had not been counted.
- 16.5. Any authorisation of a Conflict under this Article 16 may (whether at the time of giving the authorisation or subsequently) extend to any actual or potential conflict of interest which may reasonably be expected to arise out of the Conflict so authorised, or be subject to such terms and for such duration, or impose upon the interested director such limits or conditions as the

directors may determine. The directors may revoke or vary such authorisation at any time, but this will not affect anything done by the interested director prior to such termination or variation in accordance with the terms of the authorisation.

- 16.6. In authorising a Conflict the directors may decide (whether at the time of giving the authorisation or subsequently) that, if an interested director has obtained any information through his or her involvement in the Conflict otherwise than as a director of the Company and in respect of which he or she owes a duty of confidentiality to another person, the interested director is under no obligation to disclose such information to any other director or officer or employee of the Company, or use or apply any such information in relation to the Company's affairs or in performing his or her duties as a director, where to do so would amount to a breach of that confidence.
- 16.7. Where the directors authorise a Conflict they may provide, without limitation (whether at the time of giving the authorisation or subsequently) that the interested director:
- 16.7.1. should be excluded from participating in discussions (whether at meetings of directors or otherwise) related to the Conflict;
 - 16.7.2. should not be given access to any documents or other information relating to the Conflict;
 - 16.7.3. should or should not be permitted to vote (or to be counted in the quorum) at any future decision of the directors in relation to any resolution relating to the Conflict; and/or
 - 16.7.4. should be permitted to absent himself or herself from the discussion of matters relating to the Conflict at any meeting of the directors and be excused from reviewing papers prepared by, or for, the directors to the extent they relate to such matters.
- 16.8. Where the directors authorise a Conflict:
- 16.8.1. the interested director will be obliged to conduct himself or herself in accordance with any terms, limits and/or conditions imposed by the directors in relation to the Conflict; and
 - 16.8.2. the interested director will not infringe any duty he or she owes to the Company by virtue of sections 171 to 177 of the CA 2006, provided he or she acts in accordance with such terms, limits and/or conditions (if any) as the directors impose in respect of the Conflict's authorisation.
- 16.9. A director, notwithstanding his or her office, may be a director or other officer of, employed by, or otherwise interested (including by the holding of shares) in, any member of the Group and no further authorisation under Article 16 shall be necessary in respect of any such interest.
- 16.10. A director is not required, by reason of being a director (or because of the fiduciary relationship established by reason of being a director), to account to the Company for any remuneration, profit or other benefit which he or she receives as director or other officer or employee of a member of the Group, or which he or she derives from or in connection with a relationship involving a Conflict which has been authorised by the directors or by the Company in a general meeting (subject in each case to any terms, limits or conditions attaching to that authorisation), and no contract, arrangement, transaction, or proposal shall be liable to be avoided on such grounds nor shall the receipt of any such remuneration or other benefit constitute a breach of his or her duty under section 176 of the CA 2006.

- 16.11. For the purposes of this Article 16, references to proposed decisions and decision-making processes include any directors' meeting (or part of a directors' meeting).
- 16.12. Subject to Article 16.13, if a question arises at a meeting of directors or of a committee of directors as to the right of a director to participate in the meeting (or part of the meeting) for voting or quorum purposes, the question may, before the conclusion of the meeting, be referred to the chairman whose ruling in relation to any director other than the chairman is to be final and conclusive.
- 16.13. If any question as to the right to participate in the meeting (or part of the meeting) should arise in respect of the chairman the question is to be decided by a decision of the directors at that meeting, for which purpose the chairman is not to be counted as participating in the meeting (or that part of the meeting) for voting or quorum purposes.

17. Records of decisions to be kept

- 17.1. The directors must ensure that the Company keeps a record, in writing, for at least ten years from the date of the decision recorded, of every unanimous or majority decision taken by the directors.
- 17.2. Where decisions of the directors are taken by electronic means, such decisions shall be recorded by the directors in a form that enables the directors to retain a copy of such decisions.

18. Directors' discretion to make further rules

Subject to the Articles and the CA 2006, the directors may make, vary, relax or repeal any rule which they think fit about how they take decisions, and about how such rules are to be recorded or communicated to directors.

APPOINTMENT AND TERMINATION OF APPOINTMENT OF DIRECTORS

19. Number of directors

Unless otherwise determined by ordinary resolution, the number of directors (other than alternate directors) shall not be subject to any maximum but shall not be less than one.

20. Methods of appointing directors

- 20.1. Any person who is willing to act as a director, and is permitted by law to do so, may be appointed to be a director:
- 20.1.1. by ordinary resolution, or
- 20.1.2. by a decision of the directors.
- 20.2. In any case where, as a result of death or bankruptcy, the Company has no members and no directors, the transmittee(s) of the last member to have died or to have a bankruptcy order made against him or her (as the case may be) shall have the right by notice in writing to appoint a person (including a transmittee who is a natural person), who is willing to act and is permitted to do so, to be a director.
- 20.3. For the purposes of Article 20.2, where two or more members die in circumstances rendering it uncertain who was the last to die, a younger member is deemed to have survived an older member.

21. Termination of director's appointment

- 21.1. A person ceases to be a director as soon as:

- 21.1.1. that person ceases to be a director by virtue of any provision of the CA 2006 or is prohibited from being a director by law;
- 21.1.2. a bankruptcy order is made against that person;
- 21.1.3. a composition is made with that person's creditors generally in satisfaction of that person's debts and the Company resolves that his or her office be vacated;
- 21.1.4. a registered medical practitioner who is treating that person gives a written opinion to the Company stating that that person has become physically or mentally incapable of acting as a director and may remain so for more than three months; or
- 21.1.5. notification is received by the Company from the director that the director is resigning from office, and such resignation has taken effect in accordance with its terms.

22. Directors' remuneration

- 22.1. Directors may undertake any services for the Company that the directors decide.
- 22.2. Directors are entitled to such remuneration as the directors determine:
 - 22.2.1. for their services to the Company as directors, and
 - 22.2.2. for any other service which they undertake for the Company.
- 22.3. Subject to the Articles, a director's remuneration may:
 - 22.3.1. take any form, and
 - 22.3.2. include any arrangements in connection with the payment of a pension, allowance or gratuity, or any death, sickness or disability benefits, to or in respect of that director.
- 22.4. Unless the directors decide otherwise, directors' remuneration accrues from day to day.

23. Directors' expenses

- 23.1. The Company may pay any reasonable expenses which the directors (including alternate directors) and the secretary (if any) properly incur in connection with their attendance at:
 - 23.1.1. meetings of directors or committees of directors,
 - 23.1.2. general meetings, or
 - 23.1.3. separate meetings of the holders of any class of shares or of debentures of the Company, or
 - 23.1.4. otherwise in connection with the exercise of their powers and the discharge of their responsibilities in relation to the Company.

ALTERNATE DIRECTORS

24. Appointment and removal of alternate directors

- 24.1. Any director (the "**appointor**") may appoint as an alternate any other director, or any other person approved by resolution of the directors, to:

- 24.1.1. exercise that director's powers; and
- 24.1.2. carry out that director's responsibilities,

in relation to the taking of decisions by the directors in the absence of the alternate's appointor.

- 24.2. Any appointment or removal of an alternate must be effected by notice in writing to the Company signed by the appointor, or in any other manner approved by the directors.
- 24.3. The notice must:
 - 24.3.1. identify the proposed alternate; and
 - 24.3.2. in the case of a notice of appointment, contain a statement signed by the proposed alternate that the proposed alternate is willing to act as the alternate of the director giving the notice.

25. Rights and responsibilities of alternate directors

- 25.1. An alternate director may act as alternate director to more than one director and has the same rights in relation to any decision of the directors as the alternate's appointor.
- 25.2. Except as the Articles specify otherwise, alternate directors:
 - 25.2.1. are deemed for all purposes to be directors;
 - 25.2.2. are liable for their own acts and omissions;
 - 25.2.3. are subject to the same restrictions as their appointors (including those set out in sections 172 to 177 of the CA 2006 (inclusive) and Article 16 (Directors' conflicts of interest)), and
 - 25.2.4. are not deemed to be agents of or for their appointors,

and, in particular (without limitation), each alternate director shall be entitled to receive notice of all meetings of directors and of all meetings of committees of directors of which his or her appointor is a member.

- 25.3. A person who is an alternate director but not a director:
 - 25.3.1. may be counted as participating for the purposes of determining whether a quorum is present (but only if that person's appointor is not participating and provided that no alternate may be counted as more than one director for these purposes);
 - 25.3.2. may participate in a unanimous decision of the directors (but only if his or her appointor does not participate); and
 - 25.3.3. may sign a written resolution (but only if it is not signed or to be signed by that person's appointor).
- 25.4. A director who is also an alternate director is entitled, in the absence of any of his or her appointors, to a separate vote on behalf of each absent appointor, in addition to his or her own vote on any decision of the directors, but he or she shall count as only one for the purpose of determining whether a quorum is present.
- 25.5. An alternate director is not entitled to receive any remuneration from the Company for serving as an alternate director except such part of the alternate's appointor's remuneration as the appointor may direct by notice in writing made to the Company.

26. Termination of alternate directorship

- 26.1. An alternate director's appointment as an alternate for any appointor terminates:
- 26.1.1. when that appointor revokes the appointment by notice to the Company in writing specifying when it is to terminate;
 - 26.1.2. when notification is received by the Company from the alternate that the alternate is resigning as alternate for that appointor and such resignation has taken effect in accordance with its terms;
 - 26.1.3. on the occurrence, in relation to the alternate, of any event which, if it occurred in relation to that appointor, would result in the termination of that appointor's appointment as a director;
 - 26.1.4. on the death of that appointor; or
 - 26.1.5. when the alternate's appointor's appointment as a director terminates.

SECRETARY

27. Appointment and removal of secretary

The directors may appoint any person who is willing to act as the secretary for such term, at such remuneration, and upon such conditions as they may think fit and from time to time remove such person and, if the directors so decide, appoint a replacement, in each case by a decision of the directors.

PART 3

SHARES AND DISTRIBUTIONS

SHARES

28. Further issues of shares: authority

28.1. Subject to the provisions of Article 29 (Further issues of shares: pre-emption rights), the directors are generally and unconditionally authorised to exercise any power of the Company to:

28.1.1. offer or allot;

28.1.2. grant rights or options to subscribe for or to convert any security into; or

28.1.3. otherwise create, deal in, or dispose of,

any shares in the Company to any person, at any time and subject to any terms and conditions as the directors think appropriate.

29. Further issues of shares: pre-emption rights

29.1. In accordance with section 567(1) of the CA 2006, sections 561 and 562 of the CA 2006 shall not apply to an allotment of equity securities (as defined in section 560 of the CA 2006) made by the Company.

29.2. Subject to Article 29.5, unless otherwise agreed by special resolution, if the Company proposes to allot any equity securities (including, for these purposes, the sale of equity securities that immediately before the sale were held by the Company as treasury shares), those equity securities shall not be allotted to any person unless the Company has first offered them to all members on the date of the offer on the same terms, and at the same price, as those equity securities are being offered to such other person on a *pari passu* basis and *pro rata* to the nominal value of shares held by those members, disregarding treasury shares (as nearly as possible without involving fractions).

29.3. The offer:

29.3.1. shall be in writing, open for acceptance for a period of fifteen working days from the date of the offer, and give details of the number and subscription price of the relevant equity securities; and

29.3.2. may stipulate that any member who wishes to subscribe for a number of equity securities in excess of the proportion to which they entitled shall, in their acceptance, state the number of excess equity securities (the "**Excess Securities**") for which they wish to subscribe.

29.4. Any equity securities not accepted by members pursuant to the offer made to them in accordance with Articles 29.2 and 29.3 shall be used for satisfying any requests for Excess Securities made pursuant to Article 29.3.2. If there are insufficient Excess Securities to satisfy such requests, the Excess Securities shall be allotted to the applicants as nearly as practicable in the proportion that the number of Excess Securities each member indicated they would accept bears to the total number of Excess Securities applied for (as nearly as possible without involving fractions or increasing the number of Excess Securities allotted to any member beyond that applied for by them). After that allotment, any Excess Securities remaining shall be offered to any other person as the directors may determine, at the same price and on the same terms as the offer to the members.

- 29.5. The provisions of this Article 29 shall not apply to the allotment by the Company of any equity securities (including, for these purposes, the sale of equity securities that immediately before the sale were held by the Company as treasury shares) to be held under an employees' share scheme, including securities allotted to (i) employees, officers, directors, consultants or other service providers of the Company pursuant to an employee's share scheme; or (ii) an employee benefit trust (or similar arrangement) set up for the benefit of the employees and/or consultants of the Company, provided that such issuance in each case is approved by the directors.

30. Powers to issue different classes of shares

- 30.1. Subject to these Articles, but without prejudice to the rights attached to any existing share, the Company may issue shares with such rights or restrictions as may be determined by ordinary resolution.
- 30.2. The Company may issue shares which are to be redeemed or are liable to be redeemed at the option of the Company or the holder, and the directors may determine the terms, conditions, and manner of redemption of any such shares.

31. Variation of class rights

- 31.1. Whenever the capital of the Company is divided into different classes of shares, the special rights attached to any class may only be varied or abrogated, either whilst the Company is a going concern or during or in contemplation of a winding up, with the consent of the holders of the issued shares of that class given in accordance with Article 31.2.
- 31.2. The consent of the holders of a class of shares may be given by:
- 31.2.1. a special resolution passed at a separate general meeting of the holders of the issued shares of that class; or
 - 31.2.2. a written resolution in any form signed by or on behalf of the holders of three-quarters in nominal value of the issued shares of that class,
- but not otherwise.
- 31.3. To every such meeting, all the provisions of these Articles and the CA 2006 relating to general meetings of the Company shall apply (with such amendments as may be necessary to give such provisions efficacy), so that:
- 31.3.1. the necessary quorum shall be two holders of shares of the relevant class present in person or by proxy and holding or representing not less than one third in nominal value of the issued shares of the relevant class;
 - 31.3.2. every holder of shares of the class shall be entitled on a poll to one vote for every such share held by him or her; and
 - 31.3.3. any holder of shares of the class, present in person or by proxy or (being a corporation) by a duly authorised representative, may demand a poll.
- 31.4. If at any adjourned meeting of such holders such a quorum as aforesaid is not present, not less than one person holding shares of the class who is present in person or by proxy shall be a quorum.

32. Company's lien over shares

- 32.1. The Company has a lien (the "**Company's lien**") over every share, whether or not fully paid, which is registered in the name of any person indebted or under any liability to the Company,

whether he or she is the sole registered holder of the share or one of several joint holders, for all monies payable by him or her (either alone or jointly with any other person) to the Company, whether payable immediately or at some time in the future.

32.2. The Company's lien over a share:

32.2.1. takes priority over any third party's interest in that share, and

32.2.2. extends to any dividend or other money payable by the Company in respect of that share and (if the lien is enforced and the share is sold by the Company) the proceeds of sale of that share.

32.3. The directors may at any time decide that a share which is or would otherwise be subject to the Company's lien shall not be subject to it, either wholly or in part.

33. Enforcement of the Company's lien

33.1. Subject to the provisions of this Article 33, if:

33.1.1. a lien enforcement notice has been given in respect of a share, and

33.1.2. the person to whom the notice was given has failed to comply with it,

the Company may sell that share in such manner as the directors decide.

33.2. A "**lien enforcement notice**":

33.2.1. may only be given in respect of a share which is subject to the Company's lien, in respect of which a sum is payable and the due date for payment of that sum has passed;

33.2.2. must specify the share concerned;

33.2.3. must be in writing and require payment of the sum payable within 14 days of the notice;

33.2.4. must be addressed either to the holder of the share or to a transmittee of that holder; and

33.2.5. must state the Company's intention to sell the share if the notice is not complied with.

33.3. Where shares are sold under this Article 33:

33.3.1. the directors may authorise any person to execute an instrument of transfer of the shares to the purchaser or a person nominated by the purchaser, and

33.3.2. the transferee is not bound to see to the application of the consideration, and the transferee's title is not affected by any irregularity in or invalidity of the process leading to the sale.

33.4. The net proceeds of any such sale (after payment of the costs of sale and any other costs of enforcing the lien) must be applied:

33.4.1. first, in payment of so much of the sum for which the lien exists as was payable at the date of the lien enforcement notice,

- 33.4.2. second, to the person entitled to the shares at the date of and immediately prior to the sale, but only after the certificate for the shares sold has been surrendered to the Company for cancellation or an indemnity in a form reasonably satisfactory to the directors has been given for any lost certificates, and subject to the Company's lien over every remaining share registered in the name of that person (if any) after the date of the lien enforcement notice.
- 33.5. A statutory declaration by a director or the company secretary (if any) that the declarant is a director or the company secretary (as the case may be) and that a share has been sold to satisfy the Company's lien on a specified date:
 - 33.5.1. is conclusive evidence of the facts stated in it as against all persons claiming to be entitled to the share, and
 - 33.5.2. subject to compliance with any other formalities of transfer required by the Articles or by law, constitutes a good title to the share.

34. Company not bound by less than absolute interests

Except as required by law, no person is to be recognised by the Company as holding any share upon any trust, and except as otherwise required by law or the Articles, the Company is not in any way to be bound by or recognise any interest in a share other than the holder's absolute ownership of it and all the rights attaching to it.

35. Share certificates

- 35.1. The Company must issue each member, free of charge, with one or more certificates in respect of the shares which that member holds.
- 35.2. Every certificate must specify:
 - 35.2.1. in respect of how many shares, of what class, it is issued;
 - 35.2.2. the nominal value of those shares;
 - 35.2.3. the amounts paid up on the shares; and
 - 35.2.4. any distinguishing numbers assigned to them.
- 35.3. No certificate may be issued in respect of shares of more than one class.
- 35.4. If more than one person holds a share, only one certificate may be issued in respect of it.
- 35.5. Certificates must:
 - 35.5.1. have affixed to them the Company's common seal, or
 - 35.5.2. be otherwise executed in accordance with the CA 2006.

36. Replacement of share certificates

- 36.1. If a certificate issued in respect of a member's shares is:
 - 36.1.1. damaged or defaced, or
 - 36.1.2. said to be lost, stolen or destroyed,
 that member is entitled to be issued with a replacement certificate in respect of the same shares.

- 36.2. A member exercising the right to be issued with such a replacement certificate:
- 36.2.1. may at the same time exercise the right to be issued with a single certificate or separate certificates;
 - 36.2.2. must return the certificate which is to be replaced to the Company if it is damaged or defaced; and
 - 36.2.3. must comply with such conditions as to evidence, indemnity and the payment of reasonable expenses.

37. Transfer of shares: general

- 37.1. The directors shall not register the transfer of any share if it is prohibited under Article 38 (Prohibited transfers).
- 37.2. If the directors refuse to register a transfer of a share they shall, as soon as practicable and in any event within two months after the date on which the transfer was lodged with the Company, send to the transferee notice of, and the reasons for, the refusal.
- 37.3. An obligation to transfer a share under these Articles shall be deemed to be an obligation to transfer the entire legal and beneficial interest in such share free from any lien, charge or other encumbrance.
- 37.4. Shares may be transferred by means of an instrument of transfer in any usual form or any other form approved by the directors, which is executed by or on behalf of the transferor and (if any of the shares is partly-paid) the transferee.
- 37.5. No fee may be charged for registering any instrument of transfer or other document relating to or affecting the title to any share.
- 37.6. The Company may retain any instrument of transfer which is registered.
- 37.7. The transferor remains the holder of a share until the transferee's name is entered in the register of members as holder of it.

38. Prohibited transfers

Notwithstanding any other provision of these Articles, no transfer of any share shall be registered if it is to any minor, undischarged bankrupt, trustee in bankruptcy or person of unsound mind.

39. Transmission of shares

- 39.1. If title to a share passes to a transmittee, the Company may only recognise the transmittee as having any title to that share.
- 39.2. Nothing in these Articles releases the estate of a deceased member from any liability in respect of a share solely or jointly held by that member.
- 39.3. A transmittee who produces such evidence of entitlement to shares as the directors may properly require:
- 39.3.1. may, subject to the Articles, choose either to become the holder of those shares or to have them transferred to another person, and
 - 39.3.2. subject to the Articles, and pending any transfer of the shares to another person, has the same rights as the holder had.

- 39.4. But, subject to Article 20.2 (Methods of appointing directors), transmittes do not have the right to attend or vote at a general meeting, or agree to a proposed written resolution, in respect of shares to which they are entitled, by reason of the holder's death or bankruptcy or otherwise, unless they become the holders of those shares.

40. Exercise of transmittes' rights

- 40.1. Transmittes who wish to become the holders of shares to which they have become entitled must notify the Company in writing of that wish.
- 40.2. If the transmittes wishes to have a share transferred to another person, the transmittes must execute an instrument of transfer in respect of it.
- 40.3. Any transfer made or executed under this Article 40 is to be treated as if it were made or executed by the person from whom the transmittes has derived rights in respect of the share, and as if the event which gave rise to the transmission has not occurred.

41. Transmittes bound by prior notices

If a notice is given to a member in respect of shares and a transmittes is entitled to those shares, the transmittes is bound by the notice if it was given to the member before the transmittes's name or the name of any person nominated under Article 39.3 (Transmission of shares) has been entered in the register of members.

42. Procedure for disposing of fractions of shares

- 42.1. This Article applies where:
- 42.1.1. there has been a consolidation or division of shares; and
 - 42.1.2. as a result, members are entitled to fractions of shares.
- 42.2. The directors may:
- 42.2.1. sell the shares representing the fractions to any person including the Company for the best price reasonably obtainable;
 - 42.2.2. authorise any person to execute an instrument of transfer of the shares to the purchaser or a person nominated by the purchaser; and
 - 42.2.3. distribute the net proceeds of sale in due proportion among the holders of the shares.
- 42.3. The person to whom the shares are transferred is not obliged to ensure that any purchase money is received by the person entitled to the relevant fractions.
- 42.4. The transferee's title to the shares is not affected by any irregularity in or invalidity of the process leading to their sale.

DIVIDENDS AND OTHER DISTRIBUTIONS

43. Procedure for declaring dividends

- 43.1. The Company may by ordinary resolution declare dividends, and the directors may decide to pay interim dividends.
- 43.2. A dividend must not be declared unless the directors have made a recommendation as to its amount. Such a dividend must not exceed the amount recommended by the directors.

- 43.3. No dividend may be declared or paid unless it is in accordance with members' respective rights.
- 43.4. Unless the members' resolution to declare or directors' decision to pay a dividend, or the rights attached to any shares, specify otherwise, it must be paid by reference to each member's holding of shares on the date of the resolution or decision to declare or pay it.
- 43.5. If the Company's share capital is divided into different classes, no interim dividend may be paid on shares carrying deferred or non-preferred rights if, at the time of payment, any preferential dividend is in arrears.
- 43.6. The directors may pay at intervals any dividend payable at a fixed rate if it appears to them that the profits available for distribution justify the payment.
- 43.7. If the directors act in good faith, they do not incur any liability to the holders of shares conferring preferred rights for any loss they may suffer by the lawful payment of an interim dividend on shares with deferred or non-preferred rights.

44. Calculation of dividends

- 44.1. Except as otherwise provided by these Articles or the rights attached to shares, all dividends must be:
 - 44.1.1. declared and paid according to the amounts paid up on the shares on which the dividend is paid; and
 - 44.1.2. apportioned and paid proportionately to the amounts paid up on the shares during any portion or portions of the period in respect of which the dividend is paid.
- 44.2. If any share is issued on terms providing that it ranks for dividend as from a particular date, that share ranks for dividend accordingly.

45. Payment of dividends and other distributions

- 45.1. Where a dividend or other sum which is a distribution is payable in respect of a share, it must be paid by one or more of the following means:
 - 45.1.1. transfer to a bank or building society account specified by the distribution recipient either in writing or as the directors may otherwise decide;
 - 45.1.2. sending a cheque made payable to the distribution recipient by post to the distribution recipient at the distribution recipient's registered address (if the distribution recipient is a holder of the share), or (in any other case) to an address specified by the distribution recipient either in writing or as the directors may otherwise decide;
 - 45.1.3. sending a cheque made payable to such person by post to such person at such address as the distribution recipient has specified either in writing or as the directors may otherwise decide; or
 - 45.1.4. any other means of payment as the directors agree with the distribution recipient either in writing or by such other means as the directors decide.
- 45.2. In these Articles, the "**distribution recipient**" means, in respect of a share in respect of which a dividend or other sum is payable:
 - 45.2.1. the holder of the share; or

- 45.2.2. if the share has two or more joint holders, whichever of them is named first in the register of members; or
- 45.2.3. if the holder is no longer entitled to the share by reason of death or bankruptcy, or otherwise by operation of law, the transmittee.

46. Deductions from distributions in respect of sums owed to the Company

- 46.1. If:
 - 46.1.1. a share is subject to the Company's lien; and
 - 46.1.2. the directors are entitled to issue a lien enforcement notice in respect of it,
 they may, instead of issuing a lien enforcement notice, deduct from any dividend or other sum payable in respect of the share any sum of money which is payable to the Company in respect of that share to the extent that they are entitled to require payment under a lien enforcement notice.
- 46.2. Money so deducted must be used to pay any of the sums payable in respect of that share.
- 46.3. The Company must notify the distribution recipient in writing of:
 - 46.3.1. the fact and amount of any such deduction;
 - 46.3.2. any non-payment of a dividend or other sum payable in respect of a share resulting from any such deduction; and
 - 46.3.3. how the money deducted has been applied.

47. No interest on distributions

- 47.1. The Company may not pay interest on any dividend or other sum payable in respect of a share unless otherwise provided by:
 - 47.1.1. the rights attached to the share, or
 - 47.1.2. the provisions of another agreement between the holder of that share and the Company.

48. Unclaimed distributions

- 48.1. All dividends or other sums which are:
 - 48.1.1. payable in respect of shares, and
 - 48.1.2. unclaimed after having been declared or become payable,
 may be invested or otherwise made use of by the directors for the benefit of the Company until claimed.
- 48.2. The payment of any such dividend or other sum into a separate account does not make the Company a trustee in respect of it.
- 48.3. If:

48.3.1. 12 years have passed from the date on which a dividend or other sum became due for payment, and

48.3.2. the distribution recipient has not claimed it,

the distribution recipient is no longer entitled to that dividend or other sum and it ceases to remain owing by the Company.

49. Non-cash distributions

49.1. Subject to the terms of issue of the share in question, the Company may, by ordinary resolution on the recommendation of the directors, decide to pay all or part of a dividend or other distribution payable in respect of a share by transferring non-cash assets of equivalent value (including, without limitation shares, or other securities in any company).

49.2. For the purposes of paying a non-cash distribution, the directors may make whatever arrangements they think fit including, where any difficulty arises regarding the distribution:

49.2.1. fixing the value of any assets;

49.2.2. paying cash to any distribution recipient on the basis of that value in order to adjust the rights of recipients; and

49.2.3. vesting any assets in trustees.

50. Waiver of distributions

50.1. Distribution recipients may waive their entitlement to a dividend or other distribution payable in respect of a share by giving the Company notice in writing to that effect, but if:

50.1.1. the share has more than one holder, or

50.1.2. more than one person is entitled to the share, whether by reason of the death or bankruptcy of one or more joint holders, or otherwise,

the notice is not effective unless it is expressed to be given, and signed, by all the holders or persons otherwise entitled to the share.

CAPITALISATION OF PROFITS

51. Authority to capitalise and appropriation of capitalised sums

51.1. Subject to these Articles, the directors may, if they are so authorised by an ordinary resolution:

51.1.1. decide to capitalise any profits of the Company (whether or not they are available for distribution) which are not required for paying a preferential dividend, or any sum standing to the credit of the Company's share premium account or capital redemption reserve; and

51.1.2. appropriate any sum which they so decide to capitalise (a "**capitalised sum**") to the persons who would have been entitled to it if it were distributed by way of dividend (the "**persons entitled**") and in the same proportions.

51.2. Capitalised sums must be applied:

51.2.1. on behalf of the persons entitled, and

51.2.2. in the same proportions as a dividend would have been distributed to them.

- 51.3. Any capitalised sum may be applied in paying up new shares of a nominal amount equal to the capitalised sum which are then allotted credited as fully paid to the persons entitled or as they may direct.
- 51.4. A capitalised sum which was appropriated from profits available for distribution may be applied:
- 51.4.1. in or towards paying up any amounts unpaid on existing shares held by the persons entitled; or
 - 51.4.2. in paying up new debentures of the Company which are then allotted credited as fully paid to the persons entitled or as they may direct.
- 51.5. Subject to these Articles the directors may:
- 51.5.1. apply capitalised sums in accordance with Articles 51.3 and 51.4 partly in one way and partly in another;
 - 51.5.2. make such arrangements as they think fit to deal with shares or debentures becoming distributable in fractions under this Article 51 (including the issuing of fractional certificates or the making of cash payments); and
 - 51.5.3. authorise any person to enter into an agreement with the Company on behalf of all the persons entitled which is binding on them in respect of the allotment of shares and debentures to them under this Article 51.

PART 4

DECISION-MAKING BY MEMBERS

ORGANISATION OF GENERAL MEETINGS

52. Convening general meetings

The directors may call general meetings at any time and upon the requisition of members pursuant to the provisions of the CA 2006. If directors fail to call a general meeting within 21 days from receiving such a request, any director or the members requisitioning the meeting (or any of them representing more than one half of the total voting rights of them all) may call a general meeting. If the Company has only a single member, such member shall be entitled at any time to call a general meeting.

53. Notice of general meetings

- 53.1. General meetings (other than an adjourned meeting) shall be called by at least 14 clear days' notice but a general meeting may be called by shorter notice if it is so agreed by members holding not less than ninety per cent (90%) in nominal value of the shares of the Company (excluding any shares held as treasury shares) giving the right to attend and vote at the meeting.
- 53.2. The notice shall specify the time, date and place of the meeting, the general nature of the business to be transacted and the terms of any resolution to be proposed at it, and shall be delivered by electronic form to the email addresses of the members.
- 53.3. Subject to the provisions of these Articles and to any restrictions imposed on any shares, the notice shall be given to all members, to all persons entitled to a share in consequence of the death or bankruptcy of a member (if the Company has been notified of their entitlement) and to the directors, the alternate directors and the secretary (if any), and to the auditors of the Company.
- 53.4. The accidental omission to give notice of a meeting to, or the non-receipt of notice of a meeting by, any person entitled to receive notice shall not invalidate the proceedings at that meeting.

54. Resolutions requiring special notice

- 54.1. If the CA 2006 requires special notice to be given of a resolution, then the resolution will not be effective unless notice of the intention to propose it has been given to the Company in compliance with s. 312 of the CA 2006.
- 54.2. Where practicable, the Company must give the members notice of the resolution in the same manner and at the same time as it gives notice of the general meeting at which it is to be proposed. Where that is not practicable, the Company must give the members at least 14 clear days' notice before the relevant general meeting by electronic form to the email addresses of the members.

55. Attendance and speaking at general meetings

- 55.1. A person is able to exercise the right to speak at a general meeting when that person is in a position to communicate to all those attending the meeting, during the meeting, any information or opinions which that person has on the business of the meeting.
- 55.2. A person is able to exercise the right to vote at a general meeting when:
 - 55.2.1. that person is able to vote, during the meeting, on resolutions put to the vote at the meeting, and

- 55.2.2. that person's vote can be taken into account in determining whether or not such resolutions are passed at the same time as the votes of all the other persons attending the meeting.
- 55.3. The directors may make whatever arrangements they consider appropriate to enable those attending a general meeting to exercise their rights to speak or vote at it.
- 55.4. In determining attendance at a general meeting, it is immaterial whether any two or more members attending it are in the same place as each other.
- 55.5. Two or more persons who are not in the same place as each other attend a general meeting if their circumstances are such that if they have (or were to have) rights to speak and vote at that meeting, they are (or would be) able to exercise them.

56. Quorum for general meetings

- 56.1. No business shall be transacted at any meeting unless a quorum is present. Subject to section 318(2) of the CA 2006, two qualifying persons (as defined in section 318(3) of the CA 2006) entitled to vote upon the business to be transacted shall be a quorum. If the Company has only a single member, the quorum shall be one qualifying person present at the meeting.
- 56.2. No business other than the appointment of the chairman of the meeting is to be transacted at a general meeting if the persons attending it do not constitute a quorum.

57. Chairing general meetings

- 57.1. If the directors have appointed a chairman, the chairman shall chair general meetings if present and willing to do so.
- 57.2. If the directors have not appointed a chairman, or if the chairman is unwilling to chair the meeting or is not present within ten minutes of the time at which a meeting was due to start:
 - 57.2.1. the directors present, or
 - 57.2.2. (if no directors are present), the meeting must appoint a director or member to chair the meeting, and the appointment of the chairman of the meeting must be the first business of the meeting.
- 57.3. The person chairing a meeting in accordance with this Article 57 is referred to as the "**chairman of the meeting**".

58. Attendance and speaking by directors and non-members

- 58.1. Directors may attend and speak at general meetings, whether or not they are members.
- 58.2. The chairman of the meeting may permit other persons who are not members of the Company, or otherwise entitled to exercise the rights of members in relation to general meetings, to attend and speak at a general meeting.

59. Adjournment

- 59.1. If the persons attending a general meeting within half an hour of the time at which the meeting was due to start do not constitute a quorum, or if during a meeting a quorum ceases to be present, the chairman of the meeting must adjourn it. If, at the adjourned meeting, a quorum is not present within half an hour from the time appointed for the meeting, the meeting shall be dissolved.
- 59.2. The chairman of the meeting may adjourn a general meeting at which a quorum is present if:

- 59.2.1. the meeting consents to an adjournment, or
- 59.2.2. it appears to the chairman of the meeting that an adjournment is necessary to protect the safety of any person attending the meeting or ensure that the business of the meeting is conducted in an orderly manner.
- 59.3. The chairman of the meeting must adjourn a general meeting if directed to do so by the meeting.
- 59.4. When adjourning a general meeting, the chairman of the meeting must:
 - 59.4.1. either specify the time and place to which it is adjourned or state that it is to continue at a time and place to be fixed by the directors, and
 - 59.4.2. have regard to any directions as to the time and place of any adjournment which have been given by the meeting.
- 59.5. If the continuation of an adjourned meeting is to take place more than 14 days after it was adjourned, the Company must give at least seven clear days' notice of it (that is, excluding the day of the adjourned meeting and the day on which the notice is given):
 - 59.5.1. to the same persons to whom notice of the Company's general meetings is required to be given, and
 - 59.5.2. containing the same information which such notice is required to contain.
- 59.6. No business may be transacted at an adjourned general meeting which could not properly have been transacted at the meeting if the adjournment had not taken place.

VOTING AT GENERAL MEETINGS

60. Voting: general

- 60.1. A resolution put to the vote of a general meeting must be decided on a show of hands unless a poll is duly demanded in accordance with the Articles. Subject to any rights or restrictions attached to any shares, on a show of hands, every member who is present in person (being an individual) or by a duly authorised representative (being a corporation) shall have one vote (unless the representative is himself or herself a member, in which case he or she shall have more than one vote). A proxy shall not be entitled to vote on a show of hands.
- 60.2. No member shall vote at any general meeting or at any separate meeting of the holder of any class of shares, either in person or by proxy, in respect of any share held by him or her unless all monies presently payable by him or her in respect of that share have been paid.
- 60.3. In the case of joint holders, the vote of the senior who tenders a vote shall be accepted to the exclusion of the votes of the other joint holders; and seniority shall be determined by the order in which the names of the holders stand in the register of members.
- 60.4. Unless a poll is duly demanded, a declaration by the chairman that a resolution has been carried or carried unanimously, or by a particular majority, or lost, or not carried by a particular majority and an entry to that effect in the minutes of the meeting shall be conclusive evidence of the fact without proof of the number or proportion of the votes recorded in favour of or against the resolution.

61. Errors and disputes

- 61.1. No objection may be raised to the qualification of any person voting at a general meeting except at the meeting or adjourned meetings at which the vote objected to is tendered, and every vote not disallowed at the meeting is valid.
- 61.2. Any such objection must be referred to the chairman of the meeting, whose decision is final.

62. Poll votes

- 62.1. On a poll, every member who, being an individual, is present in person or by proxy or, being a corporation, is present by a duly authorised representative or by proxy shall have one vote for every share of which he or she is the holder. On a poll, a member entitled to more than one vote need not use all his or her votes or cast all the votes he or she uses in the same way.
- 62.2. A poll on a resolution may be demanded:
 - 62.2.1. in advance of the general meeting where it is to be put to the vote, or
 - 62.2.2. at a general meeting, either before a show of hands on that resolution or immediately after the result of a show of hands on that resolution is declared.
- 62.3. A poll may be demanded by:
 - 62.3.1. the chairman of the meeting;
 - 62.3.2. the directors;
 - 62.3.3. two or more persons having the right to vote on the resolution;
 - 62.3.4. a person or persons representing not less than one tenth of the total voting rights of all the members having the right to vote on the resolution; or
 - 62.3.5. a person or persons holding shares conferring a right to vote on the resolution on which not less than one tenth of the total sum paid up on all the shares conferring that right.
- 62.4. A demand for a poll may be withdrawn if:
 - 62.4.1. the poll has not yet been taken, and
 - 62.4.2. the chairman of the meeting consents to the withdrawal.
- 62.5. A demand so withdrawn shall not invalidate the result of a show of hands declared before the demand was made.
- 62.6. A poll demanded on the election of a chairman or on a question of adjournment shall be taken immediately. A poll demanded on any other question shall be taken either immediately or at such time and place as the chairman directs not being more than 30 days after the poll is demanded. The demand for a poll shall not prevent the continuance of a meeting for the transaction of any business other than the question on which the poll was demanded. If a poll is demanded before the declaration of the result of a show of hands and the demand is duly withdrawn, the meeting shall continue as if the demand had not been made.
- 62.7. No notice need be given of a poll not taken immediately if the time and place at which it is to be taken are announced at the meeting at which it is demanded. In any other case at least seven clear days' notice shall be given specifying the time and place at which the poll is to be taken.

- 62.8. The result of the poll shall be deemed to be the resolution of the meeting at which the poll was demanded.

63. Content of proxy notices

- 63.1. Subject to the provisions of these Articles, a member is entitled to appoint another person as his or her proxy to exercise all or any of his or her rights to attend and to speak and vote at a general meeting. A member may appoint more than one proxy in relation to a meeting, provided that each proxy is appointed to exercise the rights attached to a different share or shares held by that member.
- 63.2. Proxies may only validly be appointed by a notice in writing (a "**proxy notice**") which:
- 63.2.1. states the name and address of the member appointing the proxy;
 - 63.2.2. identifies the person appointed to be that member's proxy and the general meeting in relation to which that person is appointed;
 - 63.2.3. is signed by or on behalf of the member appointing the proxy, or is authenticated in such manner as the directors may determine; and
 - 63.2.4. is delivered to the Company in accordance with these Articles and in accordance with any instructions contained in the notice of the general meeting (or adjourned meeting) to which they relate, provided that it is received by the Company:
 - 63.2.4.1. in the case of a general meeting or adjourned meeting, not less than 48 hours before the time for holding the meeting or adjourned meeting at which the right to vote is to be exercised;
 - 63.2.4.2. in the case of a poll taken more than 48 hours after it is demanded, after the poll has been demanded and not less than 24 hours before the time appointed for the taking of the poll; or
 - 63.2.4.3. where the poll is not taken immediately but is taken not more than 48 hours after it was demanded, at the time at which the poll was demanded or 24 hours before the time appointed for the taking of the poll, whichever is the later, and a proxy notice which is not delivered and received in such manner shall be invalid.
- 63.3. The Company may require proxy notices to be delivered in a particular form, and may specify different forms for different purposes.
- 63.4. Proxy notices may specify how the proxy appointed under them is to vote (or that the proxy is to abstain from voting) on one or more resolutions and the proxy is obliged to vote or abstain from voting in accordance with the specified instructions. However, the Company is not obliged to check whether a proxy votes or abstains from voting as he or she has been instructed and shall incur no liability for failing to do so. Failure by a proxy to vote or abstain from voting as instructed at a meeting shall not invalidate proceedings at that meeting.
- 63.5. Unless a proxy notice indicates otherwise, it must be treated as:
- 63.5.1. allowing the person appointed under it as a proxy discretion as to how to vote on any ancillary or procedural resolutions put to the meeting, and
 - 63.5.2. appointing that person as a proxy in relation to any adjournment of the general meeting to which it relates as well as the meeting itself.

64. Delivery of proxy notices

- 64.1. Any notice of a general meeting must specify the address or addresses (the "**proxy notification address**") at which the Company or its agents will receive proxy notices relating to that meeting, or any adjournment of it delivered in hard copy form or electronic form.
- 64.2. A person who is entitled to attend, speak or vote (either on a show of hands or on a poll) at a general meeting remains so entitled in respect of that meeting or any adjournment of it, even though a valid proxy notice has been delivered to the Company by or on behalf of that person to a proxy notification address.
- 64.3. An appointment under a proxy notice may be revoked by delivering to the Company a notice in writing given by or on behalf of the person by whom or on whose behalf the proxy notice was given.
- 64.4. A notice revoking a proxy appointment only takes effect if it is received by the Company:
 - 64.4.1. in the case of a general meeting or adjourned meeting, not less than 48 hours before the time for holding the meeting or adjourned meeting at which the right to vote is to be exercised;
 - 64.4.2. in the case of a poll taken more than 48 hours after it was demanded, not less than 24 hours before the time appointed for the taking of the poll; or
 - 64.4.3. where the poll is not taken immediately but is taken not more than 48 hours after it was demanded, at the time at which it was demanded or 24 hours before the time appointed for the taking of the poll, whichever is later, and a notice which is not delivered and received in such manner shall be void.
- 64.5. In calculating the periods referred to in Article 63 (Content of proxy notices) and this Article 64, no account shall be taken of any part of a day that is not a working day.
- 64.6. If a proxy notice is not executed by the person appointing the proxy, it must be accompanied by written evidence of the authority of the person who executed it to execute it on the appointor's behalf.

65. Representation of corporations at meetings

Subject to the CA 2006, a company which is a member may, by resolution of its directors or other governing body, authorise one or more persons to act as its representative or representatives at a meeting of the Company or at a separate meeting of the holders of a class of shares of the Company. A director or secretary of the Company or the chairman of the meeting may require such authorised person to produce a certified copy of the resolution of authorisation before permitting him or her to exercise his or her powers.

66. Amendments to resolutions

- 66.1. An ordinary resolution to be proposed at a general meeting may be amended by ordinary resolution if:
 - 66.1.1. notice of the proposed amendment is given to the Company in writing by a person entitled to vote at the general meeting at which it is to be proposed not less than 48 hours before the meeting is to take place (or such later time as the chairman of the meeting may determine), and
 - 66.1.2. the proposed amendment does not, in the reasonable opinion of the chairman of the meeting, materially alter the scope of the resolution.

- 66.2. A special resolution to be proposed at a general meeting may be amended by ordinary resolution, if:
- 66.2.1. the chairman of the meeting proposes the amendment at the general meeting at which the resolution is to be proposed and
 - 66.2.2. the amendment does not go beyond what is necessary to correct a grammatical or other non-substantive error in the resolution.
- 66.3. If the chairman of the meeting, acting in good faith, wrongly decides that an amendment to a resolution is out of order, the chairman's error does not invalidate the vote on that resolution.

WRITTEN RESOLUTIONS

67. Written resolutions

- 67.1. A resolution of the members (or a class of members) may be passed as a written resolution in accordance with chapter 2 of part 13 of the CA 2006.
- 67.2. A members' written resolution may be proposed by the directors or by any member holding not less than 5% of the total voting rights of all members entitled to vote in the resolution who provides the Company with an authenticated request.
- 67.3. The Company must circulate a proposed members' written resolution if so requested under this Article 67 by giving notice in writing to each eligible member.
- 67.4. Notice of a proposed members' written resolution must indicate:
- 67.4.1. the proposed resolution and any accompanying statement, if applicable; and
 - 67.4.2. the time by which it is proposed that the members should adopt it.
- 67.5. A proposed members' written resolution is adopted when the required majority of eligible members have signified their agreement to it by returning to the Company one or more copies of a signed document identifying and indicating agreement to the resolution to which it relates.
- 67.6. If and for so long as the Company has only one member, a written resolution is adopted at any time such member delivers to the Company one or more copies of a signed document signifying the member's written resolution.
- 67.7. Once a members' written resolution has been adopted, it must be treated as if it had been a decision taken at a general meeting or a meeting of a class of members of the Company, as the case may be, in accordance with these Articles.

PART 5

MISCELLANEOUS PROVISIONS

COMMUNICATIONS

68. Means of communication to be used

- 68.1. Subject to these Articles, anything sent or supplied by or to the Company under these Articles may be sent or supplied in any way in which the CA 2006 provides for documents or information which are authorised or required by any provision of the CA 2006 to be sent or supplied by or to the Company.
- 68.2. Any notice, document or other information shall be deemed served on or delivered to the intended recipient:
- 68.2.1. if properly addressed and sent by prepaid United Kingdom first class post to an address in the United Kingdom, 48 hours after it was posted;
 - 68.2.2. if properly addressed and delivered by hand, when it was given or left at the appropriate address;
 - 68.2.3. if properly addressed and sent or supplied by electronic form, 24 hours after the document or information was sent or supplied; and
 - 68.2.4. if sent or supplied by means of a website, when the material is first made available on the website or (if later) when the recipient receives (or is deemed to have received) notice of the fact that the material is available on the website.
- 68.3. For the purposes of this Article 68, no account shall be taken of any part of a day that is not a working day.
- 68.4. In proving that any notice, document or other information was properly addressed, it shall be sufficient to show that the notice, document or other information was delivered to an address permitted for the purpose by the CA 2006.
- 68.5. Subject to these Articles, any notice or document to be sent or supplied to a director in connection with the taking of decisions by directors may also be sent or supplied by the means by which that director has asked to be sent or supplied with such notices or documents.
- 68.6. A director may agree with the Company that notices or documents sent to that director in a particular way are to be deemed to have been received within a specified time of their being sent, and for the specified time to be less than 48 hours.
- 68.7. In the case of joint holders of a share, all notices or documents shall be given to the joint holder whose name stands first in the register in respect of the joint holding. Notices so given shall be sufficient to all of the joint holders. Where there are joint holders of a share, anything which needs to be agreed or specified in relation to any notice, document or other information to be sent or supplied to them can be agreed or specified by any one of the joint holders. The agreement or specification of the joint holder whose name stands first in the register will be accepted to the exclusion of the agreement or specification of any other joint holder(s) whose name(s) stand later in the register.
- 68.8. The Company may give notice to the transmittee of a member by sending or delivering it in any manner authorised by these Articles for the giving of notice to a member, addressed to that person by name or by the title of representative of the deceased or trustee of the bankrupt or representative by operation of law or by any like description, at the address (if any) within the United Kingdom supplied for the purpose by the person claiming to be so entitled. Until such an

address has been so supplied, a notice may be given in any manner in which it might have been given if the death or bankruptcy or operation of law had not occurred.

ADMINISTRATIVE ARRANGEMENTS

69. Company seals

- 69.1. Any common seal may only be used by the authority of the directors.
- 69.2. The directors may decide by what means and in what form any common seal is to be used.
- 69.3. Unless otherwise decided by the directors, if the Company has a common seal and it is affixed to a document, the document must also be signed by either at least two authorised persons or by at least one authorised person in the presence of a witness who attests the signature.
- 69.4. For the purposes of this Article 69, an authorised person is:
 - 69.4.1. any director of the Company;
 - 69.4.2. the Company secretary (if any); or
 - 69.4.3. any person authorised by the directors for the purpose of signing documents to which the common seal is applied.

70. No right to inspect accounts and other records

Except as provided by law, authorised by the directors or authorised by ordinary resolution of the Company, no person is entitled to inspect any of the Company's accounting or other records or documents merely by virtue of being a member.

71. Provision for employees on cessation of business

The directors may decide to make provision for the benefit of persons employed or formerly employed by the Company or any of its subsidiaries (other than a director or former director or shadow director) in connection with the cessation or transfer to any person of the whole or part of the undertaking of the Company or that subsidiary.

DIRECTORS' INDEMNITY AND INSURANCE

72. Indemnity

- 72.1. Subject to Article 72.2, but without prejudice to any indemnity to which a relevant officer is otherwise entitled:
 - 72.1.1. each relevant officer shall be indemnified out of the Company's assets against all costs, charges, losses, expenses and liabilities incurred by him or her as a relevant officer:
 - 72.1.1.1. in the actual or purported execution and/or discharge of his or her duties, or in relation to them; and
 - 72.1.1.2. in relation to the Company's (or any associated company's) activities as trustee of an occupational pension scheme (as defined in section 235(6) of the CA 2006); and
 - 72.1.2. the Company may provide any relevant officer with funds to meet defence expenditure incurred or to be incurred by him or her in connection with any civil or criminal proceeding or regulatory investigation or other regulatory action or in connection with any application for any category of relief permitted by the CA 2006

and otherwise may take any action to enable any such relevant officer to avoid incurring such expenditure.

72.2. This Article 72 does not authorise any indemnity which would be prohibited or rendered void by any provision of the CA 2006 or by any other provision of law.

72.3. In this Article 72, companies are associated if one is a subsidiary of the other or both are subsidiaries of the same body corporate.

73. Insurance

73.1. The directors may exercise all the powers of the Company to purchase and maintain for every relevant officer insurance against any liability for negligence, default, breach of duty or breach of trust or any other liability which may be lawfully insured against.

73.2. In this Article 73, companies are associated if one is a subsidiary of the other or both are subsidiaries of the same body corporate.